

COMMITTEE ON HEALTH AND HUMAN SERVICES
SENATE AMENDMENTS TO S.B. 1149
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 8-847, Arizona Revised Statutes, is amended to
3 read:

4 8-847. Periodic review hearings; contested issues;
5 evidentiary hearings; procedures

6 A. After the disposition hearing, the court shall hold periodic
7 review hearings at least once every six months as required by federal law.

8 B. At a proceeding to review the disposition orders of the court,
9 the court shall provide the following persons notice of the review and the
10 right to participate in the proceeding:

11 1. The authorized agency charged with the child's care and custody.

12 2. Any foster parents in whose home the child resided within the
13 last six months or resides at present, except for those foster parents who
14 maintain a receiving foster home where the child has resided for ten days
15 or less. The petitioner shall provide the court with the names and
16 addresses of all foster parents who are entitled to notice pursuant to
17 statute.

18 3. A shelter care facility or receiving foster home where the child
19 resides or has resided within the last six months for more than ten days.
20 The petitioner shall provide the court with the names and addresses of all
21 shelter care facilities and receiving foster homes that are entitled to
22 notice pursuant to this paragraph.

23 4. The child's parent or guardian unless the parental rights of
24 that parent or guardian have been terminated by court action or unless the
25 parent has relinquished rights to the child to an agency or has consented
26 to the adoption of the child as provided in section 8-107.

27 5. The child, if twelve years of age or older.

28 6. The child's relative, as defined in section 8-501, if that
29 relative files a written notice of right of participation with the court.

1 7. A person permitted by the court to intervene as a party in the
2 dependency proceeding.

3 8. A physical custodian of the child within the preceding six
4 months.

5 9. Any person who has filed a petition to adopt or who has physical
6 custody pursuant to a court order in a foster-adoptive placement.

7 10. Any other person as the court may direct.

8 11. IF THE CHILD IS A MEMBER OF AN INDIAN TRIBE, THE CHILD'S TRIBE.

9 C. At the first periodic review hearing, the court shall consider
10 whether a parent of a child who is under three years of age has
11 substantially neglected or wilfully refused to participate in
12 reunification services offered by the department.

13 D. At any periodic review hearing, the court shall consider the
14 health and safety of the child as a paramount concern.

15 E. At any periodic review hearing the court shall determine:

16 1. Whether the department has identified and assessed placement of
17 the child with a relative or person who has a significant relationship
18 with the child.

19 2. Whether the parent or guardian has complied with the court order
20 pursuant to section 8-824, subsection ~~D~~ E, paragraph ~~6~~ 7 or PROVIDED THE
21 INFORMATION PRESCRIBED IN section 8-842, subsection B, paragraph 1.

22 F. If the court finds that a child is no longer dependent, before
23 it dismisses the proceeding the court shall provide notice of the sibling
24 information exchange program established pursuant to section 8-543 to the
25 following:

26 1. An adult who is the former dependent child in the proceeding for
27 whom the periodic review hearing is held.

28 2. A parent or guardian with legal custody of the former dependent
29 child for whom the periodic review hearing is held.

30 G. THE DEPARTMENT SHALL PROVIDE A REPORT TO THE COURT AND ALL OF
31 THE PARTIES AT LEAST FIFTEEN DAYS BEFORE ANY PERIODIC REVIEW HEARING THAT
32 PROVIDES ALL OF THE FOLLOWING INFORMATION:

33 1. THE PLACEMENT OF THE CHILD.

34 2. THE SERVICES BEING PROVIDED TO THE CHILD AND THE CHILD'S FAMILY,
35 INCLUDING THE CHILD'S EDUCATIONAL NEEDS.

36 3. THE PROGRESS MADE IN ACHIEVING THE CHILD'S CASE PLAN GOALS.

37 4. WHETHER THE CHILD CONTINUES TO BE DEPENDENT.

38 H. AT THE CONCLUSION OF A PERIODIC REVIEW HEARING, THE COURT SHALL
39 EITHER DISMISS THE PETITION AND RETURN THE CHILD TO THE CHILD'S PARENT IF
40 THE COURT ~~[FIND]~~ [FINDS] THE CHILD IS NO LONGER DEPENDENT OR MAKE A
41 FINDING THAT THE CHILD CONTINUES TO BE DEPENDENT. IF THE COURT FINDS THAT
42 THE CHILD CONTINUES TO BE DEPENDENT, THE COURT SHALL DO ALL OF THE
43 FOLLOWING:

44 1. ENTER ORDERS CONCERNING:

45 (a) THE PLACEMENT, CUSTODY AND EDUCATIONAL NEEDS OF THE CHILD.

46 (b) THE SERVICES TO BE PROVIDED TO THE FAMILY AND THE CHILD.

47 2. IF THE CHILD IS NOT PLACED WITH A PARENT, DETERMINE WHETHER THE
48 DEPARTMENT HAS IDENTIFIED AND ASSESSED WHETHER PLACEMENT OF THE CHILD WITH

1 A RELATIVE OR PERSON WHO HAS A SIGNIFICANT RELATIONSHIP WITH THE CHILD IS
2 POSSIBLE.

3 3. DETERMINE WHETHER THE PARENT HAS COMPLIED WITH AN ORDER ISSUED
4 PURSUANT TO SECTION 8-824, SUBSECTION E, PARAGRAPH 7.

5 4. SET THE NEXT PERIODIC REVIEW HEARING.

6 5. SET A PERMANENCY HEARING NOT LATER THAN TWELVE MONTHS AFTER THE
7 DATE THE CHILD WAS REMOVED FROM THE CHILD'S HOME.

8 6. ADVISE THE CHILD'S PARENT ON THE RECORD THAT THE PARENT'S
9 FAILURE TO ATTEND FURTHER PROCEEDINGS WITHOUT GOOD CAUSE OR THE PARENT'S
10 FAILURE TO PARTICIPATE IN REUNIFICATION SERVICES MAY RESULT IN THE
11 TERMINATION OF THE PARENT'S PARENTAL RIGHTS OR THE ESTABLISHMENT OF A
12 PERMANENT GUARDIANSHIP OF THE CHILD. THE COURT SHALL MAKE SPECIFIC
13 FINDINGS THAT THE COURT ADVISED THE PARENT OF THE CONSEQUENCES OF THE
14 PARENT'S FAILURE TO ATTEND AND PARTICIPATE IN SUBSEQUENT HEARINGS.

15 I. ALL FINDINGS MADE BY THE COURT SHALL BE MADE IN A WRITTEN AND
16 SIGNED MINUTE ENTRY OR ORDER.

17 J. ANY PARTY SEEKING AN EVIDENTIARY HEARING ON ANY CONTESTED ISSUE
18 SHALL FILE A MOTION REQUESTING THAT THE MATTER BE SET FOR AN EVIDENTIARY
19 HEARING. THE MOTION SHALL IDENTIFY CONTESTED ISSUES TO BE CONSIDERED AT
20 THE EVIDENTIARY HEARING, THE NAMES AND ADDRESSES OF ALL WITNESSES AND THE
21 ESTIMATED TIME THE PARTIES WILL NEED TO PRESENT EVIDENCE. ON RECEIVING
22 THE MOTION, THE COURT MAY RESET THE PERIODIC REVIEW HEARING TO PROVIDE
23 SUFFICIENT TIME FOR AN EVIDENTIARY HEARING OR THE COURT MAY PROCEED WITH
24 THE SCHEDULED PERIODIC REVIEW HEARING.

25 K. AT AN EVIDENTIARY HEARING SET PURSUANT TO SUBSECTION J OF THIS
26 SECTION, THE COURT SHALL CONSIDER ANY SAFETY PLAN AS WELL AS ANY OTHER
27 SAFETY ISSUES THAT MIGHT PREVENT THE CHILD'S RETURN TO A PARENT OR THAT
28 MAY AFFECT THE CHILD'S PLACEMENT. THE COURT SHALL ADDRESS ANY
29 RECOMMENDATIONS OF THE FOSTER CARE REVIEW BOARD ON THE RECORD PURSUANT TO
30 SECTION 8-515.03. ANY EVIDENCE THE PARTIES WISH THE COURT TO CONSIDER AT
31 THE EVIDENTIARY HEARING SHALL BE MARKED BY THE COURT AND ADMITTED BEFORE
32 THE CONCLUSION OF THE HEARING. ABSENT ANY PARTY'S OBJECTION, THE COURT
33 MAY CONSIDER THE FOLLOWING EVIDENCE AT THE EVIDENTIARY HEARING:

34 1. THE ORAL OR WRITTEN REPORTS OF THE PARTIES.

35 2. ANY DOCUMENTS THAT ARE ENTERED INTO EVIDENCE AT ANY PRIOR
36 PROCEEDINGS.

37 3. ANY DOCUMENTS THAT ARE AGREED ON BY THE PARTIES.

38 Enroll and engross to conform

39 Amend title to conform

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